

25STCV04971 25STCV04971

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This

is a Lemon Law action based on a Transmission Defect.

Plaintiffs

Lucy Moreno and Lorenzo Moreno move to compel Defendant to provide the complete production of documents and written disclosure of information required under Cal.

Code Civ. Proc. § 871.26(h).

TENTATIVE RULING

The hearing on Plaintiffs Lucy Moreno and Lorenzo

Moreno's motion to compel complete production pursuant to Code Civ. Proc.

§ 871.26(h) is CONTINUED to November 16, 2026 at 8:30 a.m. The parties' joint separate statement is due November 5, 2026.

The Court will reserve the issue of sanctions for a future hearing. If Plaintiff fails to meet and confer such that the parties are able to submit a joint separate statement, the hearing will be placed off-calendar.

ANALYSIS

Motion To Compel Initial

Disclosures

The Court has

reviewed the moving, opposing and reply briefs filed by the parties, but only addresses the points which the Court deems to be material to the disposition of this motion.

Plaintiffs

Lucy Moreno and Lorenzo Moreno move to compel Defendant to provide the complete production of documents and written disclosure of information required under Cal. Code Civ. Proc. § 871.26(h).

The Court notes that the instant motion shows that rather than reducing the proliferation of discovery motions in Song-Beverly litigation, the 2024 amendments to the Song-Beverly Act simply created new fields to fight old battles. The legislative history for the bill amending the Song-Beverly Act ambitiously stated:

The expedited discovery provisions of this measure will reduce protracted discovery disputes. Discovery disputes, most notably arguments over what must be turned over to opposing parties in litigation, [are] one of the largest drivers in delays in almost every type of civil litigation. Lemon law litigation is no different. Presently, parties squabble over what maintenance records are to be disclosed, what warranty documents must be disclosed, and how depositions can be conducted. Every time one of these disputes arises, the court is forced to calendar a motion hearing and delay a potential trial. Given that lemon law cases are typically very document-heavy matters and involve a limited universe of documents, many of these discovery disputes represent little more than unnecessary litigation tactics that only serve to delay justice.

(Assem. Com. on Judiciary, analysis on A.B. 1755 (2023-2024 Reg. Sess.) as amended August 26, 2024, p. 14.)

In the Court's experience, the expedited discovery provisions of A.B. 1755 have not decreased the frequency of discovery motions. The instant motion is the fifth motion pursuant to section 871.26 calendared in the past seven weeks.

Defendant filed its demurrer on May 12, 2025, which makes the disclosures due on July 1, 2025. (Civ. Proc. Code, § 871.26(b), (h).) Plaintiffs argue that FCA remains in willful noncompliance as of March 17, 2026, which is 249 days past the statutory deadline.

Plaintiffs argue that Defendant's production of documents was incomplete as follows: The documents FCA refuses to produce include: (1) the Warranty Policies and Procedure Manual (WPPM); (2) Pre-Delivery Inspection (PDI) records showing what defects FCA knew about the vehicle's condition at the time of sale; (3) the entire warranty transaction history with missing diagnostic trouble code (DTC) results and software version information; (4) field action and recall documentation; (5)

applicable technical service bulletins (TSBs) and information service bulletins (ISBs); and (6) service manuals for systems the dealer diagnosed and repaired.

Code Civ. Proc. 871.26, subdivision (h)(12) requires FCA to produce “[w]arranty policies and procedure manuals.” (Code Civ. Proc. § 871.26(h)(12).)

Plaintiffs demand full compliance with section 871.26, subdivision (h)(12) through production of the complete WPPM, including:

- All versions applicable during Subject Vehicle’s warranty period
- All related policy documents available on FCA’s DealerCONNECT or its equivalent
- Repeat repair identification and analysis procedures
- Comeback log requirements and procedures
- Critical Customer VIN (CCV) designation criteria
- Labor Operation 85-41 procedures for unverified complaints • Escalation protocols for repeat concerns.

Code Civ. Proc. section 871.26, subdivision (h)(6) requires FCA to produce “[m]otor vehicle information reports, including build documentation, component information, and delivery details.” (Code Civ. Proc. § 871.26(h)(6).) Plaintiffs argue that FCA has failed to produce Pre-delivery Inspection (“PDI”) records despite warranty records showing a PDI charge.

Plaintiffs demand full compliance with section 871.26, subdivision (h)(6) through production of complete PDI records for VIN 2C4RC1BG1LR140728, including:

- Vehicle inspection checklist • Mandatory road test results and findings
- Mandatory recall/service action completion
- Diagnostic trouble code (DTC) scan testing results
- Battery condition testing results
- Fluid leaks and underhood/under vehicle inspection findings

- Any defects identified and corrective actions taken.

Civ. Proc. Code section 871.26, subdivision (h)(7) requires FCA to produce “[t]he entire warranty transaction history for the motor vehicle.” (Civ. Proc. Code § 871.26(h)(7).) Plaintiffs argue that FCA has produced incomplete records that omit critical information about customer concerns, diagnostic procedures, and repair attempts.

Plaintiffs demand full compliance with section 871.26, subdivision (h)(7) through production of complete warranty transaction history, including:

- All warranty claims with complete 3C documentation without “NA” entries
- Complete unfiltered warranty records matching the actual dealer documentation
- All Labor Operation 85-41 records for unverified complaints with detailed narratives
- All diagnostic narratives and test results
- All DTC codes and complete scan tool results for repairs
- All software update version numbers (from/to version)
- Complete part information including part numbers for all software updates
- All internal quality subject vehicle warranty assessments.

Code Civ. Proc. section 871.26, subdivision (h)(8) requires FCA to produce “[l]isting of required field actions applicable to the motor vehicle.” (Code Civ. Proc. § 871.26(h)(8).) Plaintiffs demand full compliance with section 871.26, subdivision (h)(8) through production of owner notification letters, recall bulletins, and complete documentation for all applicable recalls. Breana Rucker Decl. ¶ 5, Ex. 4; ¶ 6, Ex. 5.

Code Civ. Proc. section 871.26, subdivision (h)(9) requires FCA to produce “[p]ublished technical service bulletins (‘TSBs’) for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle.” (Civ. Proc. Code § 871.26(h)(9).) Subdivision (h)(10) requires “[p]ublished information

service bulletins ('ISBs') for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle." (Civ. Proc. Code § 871.26(h)(10).)

Plaintiffs demand full compliance with sections 871.26, subdivisions (h)(9) and (h)(10) through production of ALL Technical Service Bulletins and Information Service Bulletins applicable to the Subject Vehicle, including:

- All TSBs identified as not produced in the analysis above
- All ISBs (e.g. STAR Cases) identified as not produced in the analysis above
- All revisions to the bulletins listed above
- All related RRTs (Rapid Response Transmittals) and CSNs (Customer Satisfaction Notifications)
- Results of a comprehensive VIN search through FCA's DealerCONNECT or its equivalent for all applicable bulletins.

Code Civ. Proc. section 871.26, subdivision (h)(13) requires FCA to produce "[s]ervice manuals reasonably related to the nonconformities pertaining to the motor vehicle." (Code Civ. Proc. § 871.26(h)(13).) Plaintiffs demand full compliance with section 871.26, subdivision (h)(13) through production of service manuals for the Subject Vehicle, including all diagnostic, repair, and testing procedures for the following components:

- Transmission (9-Speed 948TE)
- Electrical system, power distribution, and ground systems
- Engine control system (3.6L V6 24V VVT Engine Upgrade I w/ESS)
- Battery system and start/stop system
- Tire Pressure Monitoring System (TPMS)
- Wiper system and rain sensing wiper diagnostics
- wiTECH diagnostic procedures for all documented DTCs

- Wiring diagrams and circuit schematics for affected systems

Plaintiffs seek mandatory \$2,500 sanctions against FCA for failing to produce required documents that undeniably exist.

Defendant FCA argues that it complied with the statute. Before the statutory deadline, FCA served an initial disclosure production consisting of several hundred pages of materials, including repair records, warranty claims records, the repair order detail report, sales documents, the vehicle information detail report, glove-box documents, the Monroney label, Customer Assistance Inquiry records, service contract reports, Technical Service Bulletins, and recall-related materials applicable to the Subject Vehicle. FCA also produced, subject to the governing protective order, the Warranty Administration Manual, Dealer Policy Manual, Service Manual, and customer-assistance policies and procedures.

Defendant argues that it served its initial disclosure production on July 11, 2025 (Lopez Decl., ¶ 3) and has produced several hundred pages of documents, including:

- A copy of the owner's manual for the Subject Vehicle
 - A copy of the quick reference guide for the Subject Vehicle
 - A copy of the sales brochure for the Subject Vehicle
 - A copy of the Warranty Information Booklets
 - A copy of the Repair Order Detail Report for the Subject Vehicle
 - A copy of the repair records for the Subject Vehicle
 - A copy of the Vehicle Information Detail Report for the Subject Vehicle
 - A copy of the Warranty Claims Records for the Subject Vehicle
 - A copy of the Monroney Label for the Subject Vehicle
 - A copy of the service bulletins and recalls that may be applicable to the Subject Vehicle
- FCA has also produced the following documents subject to a protective order:

- A copy of the Warranty Administration Manual
- A copy of the Service Manual
- A copy of the Dealer Policy Manual
- A copy of the policies and procedures of its Customer Assistance Center regarding handling of customer complaints and requests for refund or replacement of their vehicle

(Lopez Decl., ¶ 4.)

In fact, Defendant admits that due to an inadvertence in Defendant counsel's office, on July 23, 2025, FCA US served its initial disclosure production. (Claudia Gavrilescu Decl., ¶ 11.) It is factual that FCA US was slightly late in serving its production, but Defendant contends that Plaintiffs have suffered no prejudice. Defendant contends that Plaintiff has been provided with all mandatory initial disclosure production.

Defendant argues that nothing in section 871.26 requires a manufacturer to serve written responses, verifications, sworn statements, or a certification of search completeness. Defendant argues that Code of Civil Procedure section 871.26 establishes a limited early disclosure procedure for Song-Beverly cases.

Defendant argues that Plaintiff's motion should be denied because FCA already produced the documents required by section 871.26. FCA's production included the vehicle specific materials necessary to evaluate Plaintiff's claim, including repair records, warranty claims records, the repair order detail report, vehicle information records, sales documents, service contract reports, Customer Assistance Inquiry records, the Monroney label, TSBs, and recall-related materials, among other documents.

Defendant argues that the statute identifies specific categories of information to be exchanged early in the case. It does not require a manufacturer to produce every internal, administrative, financial, technical, dealer-facing, parts-return, preauthorization, or customer-retention record associated with a VIN. Plaintiff's requested order would expand section 871.26 far beyond its text and purpose. If Plaintiff wants broader internal database discovery, Plaintiff must use the Civil Discovery Act, where FCA may assert appropriate objections and confidentiality protections. Plaintiff cannot use a motion to compel initial disclosures to obtain a database-wide

production that the statute does not require. In fact, section 871.26 does not contain an enforcement mechanism and only permits sanctions. So even if Plaintiff could properly demonstrate that documents required by section 871.26 were outstanding, Plaintiff's remedy is an order for sanctions alone—not an order compelling production. (See Code Civ. Proc., § 871.26, subd. (j)(1)-(4).)

The Court notes that the statute contemplates that the manufacturer's compliance may fail to fully comply with Code Civ. Proc. § 871.26(b), (c) or (d),

(4) For a manufacturer's or defendant's repeated noncompliance with subdivision (b)[1], (c), or (d), a court shall order that evidentiary sanctions attach precluding the manufacturer or defendant from introducing evidence at trial regarding whether the motor vehicle had a nonconformity that substantially impaired the use, value, or safety of the motor vehicle, or whether the motor vehicle was repaired to match the written warranty after a reasonable number of opportunities to do so.

(Code Civ. Proc., § 871.26(j)(4)[bold emphasis added].)

The possibility that evidentiary sanctions may be imposed pursuant to Code Civ. Proc. § 871.26(j)(4) suggests that the parties are given an opportunity to request further disclosures and production pursuant to § 871.26(h) if the initial production is not satisfactory.

However, as Defendant points out, Code Civ. Proc. § 871.26 does not require verified responses, and characterizes the production as an "initial disclosure," suggesting that standard discovery responses are not required.

Because there is no case law interpreting Code Civ. Proc. § 871.26, the Court must adopt a practical approach. The Court orders the parties to meet and confer and submit a joint separate statement as to each category of documents which Plaintiffs contend should have been produced. If Defendants claim that the documents are subject to being withheld based on privilege or trade secret, or that disclosure should be pursuant to the terms of a protective order, the Court will set a hearing on a motion for protective order as to those categories of documents.

The Court will reserve the issue of sanctions for a future hearing.

The Court previously continued the hearing on this motion for submission of a separate statement. On September 11, 2026, Defendant's counsel Armando Lopez submitted a declaration indicating that Plaintiff's counsel did not respond to meet and confer efforts toward preparation of a joint separate statement. As such, the hearing on the motion to compel complete production pursuant to Code Civ. Proc. § 871.26(h) is CONTINUED to November 16, 2026 at 8:30 a.m. If Plaintiff fails to meet and confer such that the parties are able to submit a joint separate statement, the hearing will be placed off-calendar.

The parties' joint separate statement is due November 5, 2026.

[1] Subd(b)

incorporates by reference the requirements set forth in sections (f), (g) and (h).